

23STCV02925 23STCV02925

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Case Number: 23STCV02925 Hearing Date: September 23, 2026 Dept: 514

Anderson v. Williams

23STCV02925

Plaintiff's Motion to File Amended Complaint

Tentative

The motion is granted.

Background

On February 10, 2023, Durand Anderson ("Plaintiff") filed the complaint in this action against Thelma Williams and Does 1 through 10 for (1) breach of warranty of habitability, (2) negligent maintenance of premises, (3) nuisance, (4) breach of quiet enjoyment, and (5) intentional infliction of emotional distress, all arising out of alleged habitability issues with a residence located at 1555 West 80th Street in Los Angeles.

On June 28, 2023, Plaintiff's counsel filed a declaration with the Court stating that Defendant Williams was deceased.

July 3, 2023, Plaintiff amended the complaint to name Vickie Buie, successor trustee of the Thelma E. Williams Revocable Trust ("Buie" or "Defendant"), as Doe 1.

On September 27, 2023, Defendant Buie filed an answer.

On November 17, 2023, Buie filed a cross-complaint against Plaintiff. Plaintiff filed an answer to the cross-complaint on December 5, 2023.

On August 11, 2026, the Court, on Defendant Buie's motion, struck allegations in the complaint regarding remedies under Civil Code section 1942.5, on the ground that Plaintiff did not state, or attempt to state, a cause of action under section 1942.5 in the complaint. Also on August 11: (1) the Court, at the request of Plaintiff, dismissed Defendant Williams without prejudice; and (2) the Court continued trial to December 7, 2026, with the Final Status Conference continued to November 20.

On August 31, 2026, Plaintiff filed this motion for leave to file a First Amended Complaint (the "FAC"). Defendant Buie filed an (untimely) opposition on September 15, and Plaintiff filed a reply on September 16.

Legal Standard

Code of Civil Procedure section 473, subdivision (a)(1), provides, in relevant part:

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

(Code Civ. Proc., § 473, subd. (a)(1); see also Code Civ. Proc., § 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading"].)

"This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047; accord *Mabie v. Hyatt* (1998) 61 Cal.App.4th 581, 596; 1 Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* (2026), ¶ 6:638.) Ordinarily, the court will not consider the validity of the proposed amended pleading in ruling on a motion for leave to amend; after leave is granted, the opposing party will have the opportunity to challenge the pleading through, for example, a demurrer or motion to strike. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760; *Kittridge Sports Co.*, *supra*, 213 Cal.App.3d at p. 1048; see also 1 Weil & Brown, *supra*, ¶ 6:644.) The court does, however, have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (E.g., *Aroa Marketing v. Hartford Ins. Co. of Midwest* (2011) 198 Cal.App.4th 781, 789; *Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230.)

Leave to amend may be denied when there is a long, unexcused delay in seeking amendment that causes prejudice to the opposing party. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) Prejudice may be shown, in certain circumstances, where the amendment would delay trial, result in the loss of critical evidence, add to the costs of preparation, or increase the burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.) But delay alone, without unfair prejudice to other parties, is not a basis to deny leave to amend. (*Atkinson*, *supra*, 109 Cal.App.4th at p. 761; *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 563-565.)

California Rules of Court, rule 3.1324, governs motions for leave to amend. Subdivision (a) requires that the motion must:

"(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and

(3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located."

Subdivision (b) of rule 3.1324 requires that a declaration must accompany the motion and must state:

“(1) The effect of the amendment;

(2) Why the amendment is necessary and proper;

(3) When the facts giving rise to the amended allegations were discovered; and

(4) The reasons why the request for amendment was not made earlier.”

Request for Judicial Notice

Defendant Buie asks the Court to take judicial notice of the following: (1) a Stipulation and Judgment in Buie v. Anderson, an unlawful detainer matter, Case No. 24STUD11316; (2) this Court’s Minute Order dated August 11, 2026; and (3) the complaint in this action.

The request is granted.

Objections to Evidence

Defendant Buie asserts 8 objections to the declaration of Plaintiff’s counsel Christian Oronsaye. The objections are overruled.

Discussion

The Court begins with two threshold matters.

First, the Court exercises its discretion to consider the late-filed opposition of Defendant Buie.

Second, the Court finds that Plaintiff has complied with, or at the least substantially complied with, the procedural requirements of California Rules of Court, rule 3.1324.

Turning now to the merits, Plaintiff moves for leave to file the FAC to add five new causes of action. The new causes of action are (consecutively numbered): (6) unlawful conduct to influence a tenant to vacate a residential unit in violation of Civil Code section 1940.2; (7) unlawful demanding and collecting rent for an uninhabitable residential unit in violation of Civil Code section 1942.4; (8) unlawful retaliation in violation of Civil Code section 1942.5; (9) negligent hiring, training, retention, and supervision of agents; and (10) racial discrimination in violation of the Unruh Civil Rights Act, Civil Code section 51.

Plaintiff argues that amendment is proper as the new causes of action all arise out of the same basic landlord-tenant relationship as the causes of action in the original complaint. Plaintiff also argues that the amendment is timely because counsel first learned of the facts supporting the new causes of action at the Plaintiff’s own deposition on April 30, 2026. Plaintiff also suggests that the Court, on August 11, granted Plaintiff leave to amend. This last point is simply incorrect; although the potential for amendment was discussed on August 11, the Court did not grant leave to amend or rule on any other matter that was not before the Court that day.

Defendant Buie raises a series of arguments in opposition to the motion. Defendant argues, for example, that the new causes of action are time-barred, contradicted by Plaintiff’s own testimony, or otherwise subject to various defenses. Here,

however, the Court will not adjudicate the merits of the proposed new causes of action on a motion for leave to amend. If the motion is granted, Defendant will have ample opportunity to present all available defenses to the amended complaint, whether through demurrer, motion for summary adjudication, or trial.

Defendant Buie also argues that Plaintiff has unreasonably delayed in bringing this motion. The Court shares some of Defendant's concerns about the late nature of the proposed amendment, particularly because the allegedly "new" facts were known to Plaintiff all along, although apparently not to Plaintiff's counsel. (See Oronsaye Decl., ¶¶ 5-10.) On this record, however, Defendant has not shown that permitting the amendment would cause her undue or unfair prejudice. To be sure, Defendant would rather defend against five causes of action rather than ten, but that is not the type of undue or unfair prejudice that the Court must consider in this context. There are some new issues that Plaintiff seeks to inject into this action, and it would potentially raise concerns about undue prejudice if the Court were to grant leave to amend without continuing the trial date. Indeed, if the Court grants leave to amend the Court will continue trial to permit Defendant (and Plaintiff) to have an adequate time to conduct discovery (and, potentially, motion practice) on these new claims. A continuance, the Court finds, will address the legitimate concerns about unfair prejudice raised by Defendant.

In that regard, the Court notes that if this motion were denied on the grounds of undue delay, that ruling would not be an adjudication on the merits of these five new causes of action. Nothing would stop Plaintiff from filing a new complaint against Defendant Buie with the new causes of action and then seeking to have the two cases related and ultimately consolidated.

Finally, Defendants ask for a number of substantive conditions that are unclear to the Court or are not adequately supported. The Court will grant the motion. The filing of an amended complaint reopens the pleadings: Defendant Buie will be able to respond to the amended complaint and may at that time file an amended cross-complaint. All of Defendant's defenses may be presented through her answer or other response to the amended complaint.

Conclusion

The Court GRANTS Plaintiff Durand Anderson's motion for leave to file the First Amended Complaint.

The Court GRANTS LEAVE to Plaintiff to file and serve the First Amended Complaint by no later than September 30, 2026. (To the extent that Plaintiff seeks an order that the First Amended Complaint is "deemed" filed, that request is denied.)

Defendant must file an answer or other responsive pleading within the time set by Code.

To protect Defendant against undue prejudice, the Court CONTINUES the trial date to May 3, 2027, at 9:30 a.m., in Department 514. The Final Status Conference is CONTINUED to April 23, 2027, at 9:30 a.m., in Department 514.

All discovery deadlines are reset based on the new trial date.

Moving Party is ordered to give notice.